

20NWCV00287 20NWCV00287

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-30

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Case Number: 20NWCV00287 Hearing Date: July 30, 2026 Dept: C

CUEVA vs RODARTE

CASE NO.: 20NWCV00287

HEARING: 7/30/26

at 9:30 AM

#8

TENTATIVE

RULING

Defendant and Cross-Complainant

Derek Rodarte's Unopposed Motion to

Modify Preliminary Injunction is GRANTED.

Defendant and Cross-Complainant Derek

Rodarte (Defendant) moves the Court for an order modifying the Preliminary Injunction entered by the Court on November 19, 2021, or, in the alternative, enforcing the settlement reached between the parties in this action.

BACKGROUND

On June 16, 2021, Defendant filed a

CrossComplaint for: (1) Violation of the Visual Artists Rights Act ("VARA");

(2) Violation of Cal. Civ. Code §987; (3) Conversion; (4) Breach of Contract;

and (5) Unfair Business Practices. Defendant sought injunctive relief to

prevent Plaintiff/Cross-Defendant Luis Jorge Cueva (Plaintiff) from harming,

defacing, mutilating, altering, or destroying any works of art created by Defendant that are in Plaintiff's possession.

On November 19, 2021, the Court GRANTED the preliminary injunction.

DISCUSSION

On August 5, 2025, the parties agreed to settle the action. An essential provision of the settlement was that Plaintiff would allow Defendant to recover possession of the paintings which have been kept in a storage unit in San Diego County by plaintiff pursuant to the Preliminary Injunction entered by the Court on November 19, 2021. The parties agreed that Defendant could retrieve the Paintings from the storage unit on April 16, 2026, and that a representative of Plaintiff would be there to give Defendant access to the storage unit where they are kept. When Defendant timely arrived at the storage unit to retrieve the Paintings, Defendant was refused access to the storage unit because no representative of Plaintiff was present to allow access. Plaintiff did not respond to requests on April 16, 2026, to send a representative to the storage unit to allow Defendant to retrieve the paintings, and no representative of Plaintiff ever came to the storage facility.

Plaintiff failed to respond to repeated attempts by Defendant to set up a new date on which Defendant could retrieve the paintings.

CONCLUSION

On July 17, 2026, Plaintiff filed a notice of non-opposition. Plaintiff indicated that he has no objection to the relief sought in the MOTION, specifically that the paintings that are the subject of the Settlement Agreement be returned to Defendant as timely as possible. Plaintiff has been actively working to get the paintings to Defendant and expects to have that accomplished in advance of the July 30, 2026 hearing on the motion.

Accordingly, Defendant's motion is GRANTED. Plaintiff shall allow Defendant to retrieve the paintings by no later than July 30, 2026, or any later date agreed upon by the parties.